

Court No. - 2

Case :- WRIT - C No. - 71438 of 2009

Petitioner :- Vyathitmani Tripathi

Respondent :- State Of U.P. And Others

Petitioner Counsel :- B.N. Yadav

Respondent Counsel :- C.S.C.,H.P. Dube

Hon'ble Ashok Bhushan,J.

Hon'ble Virendra Singh,J.

Heard learned counsel for the petitioner and Sri Prem Sagar Dubey appearing for the respondents.

By this writ petition, the petitioner has prayed for a writ of mandamus directing the respondents not to realise the electricity bill of Connection No.037752 from the petitioner.

The petitioner has filed a bill dated 29.10.2009 as Annexure-5 to the writ petition. Petitioner's case is that connection was never given to him and the bills are being issued incorrectly.

Learned counsel for the respondents submits that under Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 the petitioner has remedy of raising his grievance.

There being remedy provided under the U.P. Electricity Supply Code, 2005, the petitioner may invoke the same in accordance with law. The writ petition cannot be entertained in view of availability of remedy.

The writ petition is dismissed.

Order Date :- 11.1.2010

Rakesh